FILED

APR 24 2020

OFFICE OF THE CLERK
SUPREME COURT
COURT OF APPEALS

IN THE SUPREME COURT OF MISSISSIPPI

No. 2020-AD-00001-SCT

IN RE: MOTION FOR EMERGENCY ORDER RELATED TO COVID-19

MOTION FOR TEMPORARY ADOPTION OF RULE TO THE UNIFORM RULES OF PROCEDURE FOR JUSTICE COURT IMPOSING A MORATORIUM ON JUDICAL PROCEEDINGS OF EVICTION AGAINST RESIDENTIAL TENANTS, OR, IN THE ALTERNATIVE, PETITION FOR EXTRAORDINARY WRIT IMPOSING MORATORIUM ON RESIDENTIAL EVICTIONS, DUE TO THE OUTBREAK OF CORONAVIRUS (COVID-19)

COMES NOW, the Mississippi Center for Justice and, in accordance with Rule 27(f) of the Mississippi Rules of Appellate Procedure, and in light of the previously unprecedented national and state emergencies due to the outbreak of Coronavirus (COVID-19), files this MOTION for temporary adoption of a rule to the Uniform Rules of Procedure for Justice Court imposing a moratorium on all judicial proceedings of evictions against residential tenants, and prohibition on charging late fees related to nonpayment of rent, or in the alternative, files this, in accordance with Rule 21(e) of the Mississippi Rules of Appellate Procedure, as a PETITION FOR EXTRAORDINARY WRIT respectfully requesting that the Court impose a moratorium on all judicial proceedings of eviction against residential tenants, and prohibition on charging fees related to nonpayment of rent. In support of this Petition, the petitioner would show that:

1. Mississippi Rules of Appellate Procedure Rule 27(f) requires, "All applications concerning the adoption, repeal, or amendment of the . . . Uniform Rules of Procedure for Justice Court, . . . and all other rules affecting . . . the administration of the courts in Mississippi shall be filed in the Supreme Court."

MOTION # 2020-1303

2. Mississippi Rules of Appellate Procedure Rule 21(e) requires, "Application for extraordinary writs other than those provided for in subdivisions (c) and (d) of this rule shall be made by petition filed with the clerk of the Supreme Court[.]"
3. On March 13, 2020, the President of the United States declared a national emergency due to the outbreak of Coronavirus (COVID-19).
4. On March 14, 2020, The Governor of the State of Mississippi declared a state emergency due to the outbreak of Coronavirus (COVID-19).
5. This honorable Court, through its emergency orders, "has recognized that the national and state emergencies presented by Coronavirus (COVID-19) require appropriate measures to protect the health and safety of the citizens of this State." Emergency Administrative Order-6, No. 2020-AD-00001-SCT (Miss. Mar. 24, 2020).
6. This Court has also directed that individual judges "have discretion to control their general dockets" and authorized trial courts to exercise "their sound discretion in extending deadlines, rescheduling hearings and trials." Administrative Order, No. 2020-AD-00001-SCT (Miss. Mar. 13, 2020).
7. This Court detailed its emergency administrative orders were to "minimize public health risks from coronavirus (COVID-19)." Administrative Order, No. 2020-AD-00001-SCT (Miss. Mar. 13, 2020).
8. On April 1, 2020, the Governor of the State of Mississippi declared a shelter in place order would come into effect on April 3, 2020, which suspended residential evictions. See attached Exhibit 1: Executive Order No. 1466.
9. The Governor's order is set to expire at 8 a.m. April 27, 2020.

10. Petitioner appealed to the Governor by letter on April 2 to extend the state moratorium to be consistent with the federal moratorium so that this emergency motion would not be necessary. Because the Governor has not indicated any intention to do so three days before the moratorium is scheduled to expire, Petitioner felt bound to file this emergency motion to get the needed relief. See attached Exhibit 2: MCJ Letter to Governor.
11. The Coronavirus Aid, Relief, and Economic Security Act ("CARES Act"), was signed into law by Congress on March 27, 2020, and instituted a moratorium on evictions for nonpayment of rent, and prohibits charging fees related to nonpayment of rent for 120 days (through July 27, 2020) on specific covered properties. These covered properties include those involved in federal programs administered by the U.S. Department of Housing and Urban Development, the U.S. Department of Agriculture, and the U.S. Department of Treasury.[1]
12. The inconsistent Federal and State moratoriums likely will create confusion for Mississippi Judges presiding over eviction matters, as well as for landlords and tenants.
13. The CARES Act provides additional emergency service grant funds to states and provides more flexibility for the use of other emergency funds being provided to states, which may be used to provide emergency rental assistance payments for tenants suffering job loss or loss of income due to COVID-19.
14. The aforementioned potential sources of funds for rental assistance payments are not yet operational in Mississippi, leaving a gap between the Governor's order and possible future relief for tenants.

[1] Coronavirus Aid, Relief, and Economic Security Act, H.R. 748, 116th Cong., 2d Sess. (2020) (enacted) at Sec. 4024(b): https://www.congress.gov/bill/116th-congress/house-bill/748

15. To date, forty-one (41) states and the District of Columbia have instituted orders effectively preventing residential evictions from taking place.

16. Of those states, twenty (20) have put in place moratoriums specifically prohibiting residential evictions.

17. The Supreme Court of Texas issued an Emergency Order on March 19, 2020, prohibiting residential evictions, and on April 6, 2020 extended the prohibition through April 30, 2020. See attached Exhibit 3: Fourth Emergency Order Regarding the COVID-19 State of Disaster, Misc. Docket No.20-9045 (Tex. 2020); & See attached Exhibit 4: Ninth Emergency Order Regarding the COVID-19 State of Disaster, Misc. Docket No. 20-9052.

18. In 2019, there were three hundred fifty-one thousand eight hundred and sixty-five (351,865) households in Mississippi which rented their housing; thirty-two percent (32%) of Mississippians were renters; and the average hourly wage of renters in Mississippi was eleven dollars and eighty-one cents ($11.81).[2]

19. As the Governor pointed out, when extending his shelter in place order, an estimated one hundred and thirty thousand (130,000) Mississippians have filed for unemployment insurance since the COVID-19 outbreak, representing a fourteen thousand percent increase (14,000%) in claims.[3] Only eight thousand four hundred (8,400) Mississippians were receiving unemployment on average in the weeks prior to March 15, 2020.[4] For

[2] National Low Income Housing Coalition. Out of Reach 2019: Mississippi: https://reports.nlihc.org/oor/mississippi

[3] Mississippi Today: "We are still in the eye of the storm": Governor Reeves extends shelter in place order, reopens lakes and beaches. Harrison, B. April 17, 2020: https://mississippitoday.org/2020/04/17/we-are-still-in-the-eye-of-the-storm-reeves-extends-shelter-in-place-order-reopens-lakes-and-beaches/

[4] COVID-19 and unemployment in Mississippi: weekly updates. Wolfe, A. April 9, 2020: https://mississippitoday.org/2020/04/09/covid-19-and-unemployment-in-mississippi-weekly-updates/

further comparison, in the last full week of March 2020 alone, 30,946 Mississippians filed for unemployment, higher than the previous state record of 21,215 in one week, which occurred during September 2005, following the aftermath of Hurricane Katrina.[5]

20. The number of Mississippians attempting to file for unemployment insurance is so high, the State's hotline and website are being overwhelmed with traffic.[6] While many people will eventually receive unemployment benefits, enhanced by payments under the federal stimulus bills, they are unable to pay their rent until the system is able to process applications and begin making payments.

21. On March 17, 2020 all Mississippi casinos closed upon order of the Mississippi Gaming Commission, effectively laying off and/or negatively affecting up to ten thousand four hundred (10,400) employees at the Gulf Coast casinos and sixteen thousand (16,000) employees at casinos statewide.[7]

22. The Nissan Canton plant has laid off four thousand (4,000) workers in the wake of the virus.[8]

23. Since the Governor's shelter in place order, even many of those who have not lost their jobs can be expected to experience a decrease in household income.

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[5] Mississippi Today: Mississippi's record-breaking unemployment claims spike 17,000% in two weeks of COVID-19. Wolfe, A. April 2, 2020: https://mississippitoday.org/2020/04/02/mississippis-record-breaking-unemployment-claims-spike-1700-in-two-weeks-of-covid-19/

[6] Clarion Ledger: Mississippi loosens unemployment benefits for COVID-19. But it's unclear who will qualify. Ramseth, L. March 23, 2020: https://www.clarionledger.com/story/news/2020/03/23/coronavirus-unemployment-mississippi-issues-conflicting-guidelines/2898091001/

[7] Sun Herald: All Mississippi Coast casinos are closing because of coronavirus pandemic. Perez, M. March 16, 2020: https://www.sunherald.com/news/coronavirus/article241212746.html

[8] Mississippi Today: Nissan Canton Plant lays off 4,000 workers to slow coronavirus spread. Wolfe, A. April 6, 2020: https://mississippitoday.org/2020/04/06/nissan-canton-plant-lays-off-4000-workers-to-slow-coronavirus-spread/

24. In these extraordinary circumstances presented by Coronavirus (COVID-19), it is paramount that the Court use its authority to prevent the expected and unprecedented rise in Mississippians being made homeless from evictions and to ensure clear uniformity of justice in landlord-tenant matters.

25. This Court has the "inherent authority to adopt rules of practice, procedure, and evidence to promote justice, uniformity, and the efficiency of the courts." *Newell v. State*, 308 So. 2d 71 (Miss 1975).

26. Additionally, the Chief Justice is the chief administrative officer of all courts in the state.

27. Uniform Rules of Procedure for Justice Court Rule 1.11 "Additional Rules" provides, "No rule of procedure, local or otherwise, shall be adopted without the approval of the Mississippi Supreme Court."

28. Due to the emergency and time-sensitive nature of the COVID-19 disaster and this request, Petitioner respectfully requests the Court dispense with the discretionary notice and comment period under M.R.A.P. Rule 27(f).

29. Also due to the emergency and time-sensitive nature of the COVID-19 disaster and this request, Petitioner additionally respectfully requests that if the Court view this as a Petition for Extraordinary Writ, the Court dispense with any requirement to first seek redress in a trial court as it would be burdensome and unwieldly for Petitioners to seek relief in all 82 counties during the COVID-19 outbreak.

30. In accordance with aforementioned inherent authority and capacity, Petitioner respectfully requests that this Court issue an Emergency Administrative Order temporarily adopting a rule to the Uniform Rules of Procedure for Justice Court imposing a temporary moratorium on all judicial proceedings of evictions against residential

tenants, and prohibition on charging late fees related to nonpayment of rent, or in the alternative that this Court issue an Extraordinary Writ, directed to all Justice Court Judges of this State, imposing a moratorium on all judicial proceedings of eviction against residential tenants, and prohibition on charging fees related to nonpayment of rent, either set to expire on July 27, 2020 (coinciding with the end date of the CARES Act's eviction moratorium), or, in the event the CARES Act's eviction moratorium is extended, the extended date therein, whichever is later. See attached Exhibit 5: Proposed Temporary Rule.

WHEREFORE, PREMISES CONSIDERED, Petitioner Mississippi Center for Justice respectfully requests that this Court enter an Emergency Administrative Order temporarily adopting a rule to the Uniform Rules of Procedure for Justice Courts imposing a temporary moratorium on all judicial proceedings of evictions against residential tenants, and prohibition on charging late fees related to nonpayment of rent, through July 27, 2020, or later date to be consistent with any extension of the CARES Act's eviction moratorium, or in the alternative, issue an Extraordinary Writ, directed to all Justice Court Judges of this State, imposing a temporary moratorium on all judicial proceedings of eviction against residential tenants, and prohibition on charging fees related to nonpayment of rent, through July 27, 2020, or later date to be consistent with any extension of the CARES Act's eviction moratorium.

Respectfully submitted this the 24th day of April, 2020.

VANGELA M. WADE, PRESIDENT/CEO
MISSISSIPPI CENTER FOR JUSTICE

BY: */s/ William B. Bedwell*
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Community Partners in Support of this Petition:

MISSISSIPPI STATE CONFERENCE NAACP
MISSISSIPPI RISING COALITION
MISSISSIPPI POOR PEOPLE'S CAMPAIGN
EAST BILOXI COMMUNITY COLLABORATIVE
MISSISSIPPI COALITION FOR CITIZENS WITH DISABILITES
GRACE HOUSE

STATE OF MISSISSIPPI

Office of the Governor

EXECUTIVE ORDER NO. 1466

WHEREAS, on March 14, 2020, pursuant to the Constitution of the State of Mississippi and Miss. Code Ann. § 33-15-11(b)(17), I issued a Proclamation declaring that a State of Emergency exists in the State of Mississippi as a result of the outbreak of COVID-19; and

WHEREAS, on January 31, 2020, the United States Department of Health and Human Services Secretary Alex Azar declared a public health emergency for COVID-19 beginning on January 27, 2020, on March 11, 2020, the World Health Organization characterized COVID-19 as a pandemic, and on March 13, 2020, the President of the United States declared a nationwide state of emergency due to the coronavirus COVID-19 pandemic; and

WHEREAS, the worldwide outbreak of COVID-19 and the effects of its extreme risk of person-to-person transmission throughout the United States and Mississippi significantly impact the life and health of our people, as well as the economy of Mississippi; and

WHEREAS, the risk of spread of COVID-19 within Mississippi constitutes a public emergency that may result in substantial injury or harm to life, health, and property within Mississippi; and

WHEREAS, on March 26, 2020, the Mississippi State Department of Health announced new and expanded measures to increase testing and data analysis to identify regions and localities that are at higher risk for transmission of COVID-19 and to provide more location-specific restrictions and limitation of movement and social interaction to combat the virus in those regions and localities; and

WHEREAS, additional measures are needed to further disrupt and slow the spread of the COVID-19 virus within the State and to manage needed healthcare and emergency management resources; accordingly, all individuals residing in the State of Mississippi will need to temporarily remain in their home or place of residence, and certain businesses and public amenities need to be temporarily closed to the public.

NOW, THEREFORE, I, Tate Reeves, Governor of the State of Mississippi, by the authority vested in me by the Constitution and laws of the State of Mississippi, do hereby order and direct as follows:

I. Shelter in Place

a. ***Duration:*** This Shelter in Place shall be effective at 5:00 p.m. on Friday, April 3, 2020, and shall remain in full force and effect until 8:00 a.m. on Monday, April 20, 2020, unless rescinded, modified or extended. The end date of the Lauderdale County shelter in place ordered by Executive Order No. 1465 is hereby amended to coincide with the dates established pursuant to this order.

b. ***Shelter in Place:***

i. Pursuant to the Mississippi Emergency Management Act including but not limited to Miss. Code. Ann. §§ 33-15-11(b)(1), 33-15-11(b)(4), 33-15-11(b)(6), 33-15-11(c)(1), 33-15-11(c)(4) & 33-15-31, with exceptions described herein, all individuals currently living in the State of Mississippi are ordered to stay at home or in their place of residence except as allowed in this Executive Order.

ii. For individuals whose residences are unsafe or become unsafe (for example, because of domestic violence, lack of sanitation or utilities) they may, and are encouraged to, seek alternate locations. Local law enforcement and other officials shall assist such individuals to secure such alternative locations.

iii. Individuals using outdoor space when outside their homes or residences at all times shall maintain social distancing of a minimum of 6 ft. distance between each individual and shall avoid gatherings in groups of more than 10 people.

iv. For purposes of this Executive Order the terms "home" and "residence" include single family homes, hotels, rental units, shelters, mobile home parks, and similar facilities used as an individual's principal dwelling.

c. ***Evictions Suspended:*** Pursuant to Miss. Code. Ann. §§ 33-15-11(c)(1) and 33-15-11(c)(4), evictions within the State of Mississippi are suspended, and all state, county and local law enforcement officers are directed to cease enforcement of orders of eviction for residential premises during this Shelter in Place Order. No provision contained within this Executive Order shall be construed as relieving any individual of the obligation to pay rent, to make mortgage payments, or to comply with any other obligation that an individual may have under tenancy or mortgage.

d. ***Non-essential Business and Operations Cease***
   i. All businesses and non-profit entities operating within the State of Mississippi, except for Essential Business or Operations identified in Executive Order No. 1463 as Supplemented (which is incorporated herein by reference), shall cease operation and all activities except Minimum Operations as defined herein.
   ii. Minimum Operations are those activities necessary for the business or operation to maintain the condition of facilities, premises and equipment, value of business inventory, payroll, employee benefits, security, and to facilitate employees of the business or operation to continue to work remotely from their residences.

e. ***Essential Business or Operations Remain Open***
   i. Essential Businesses or Operations identified in Executive Order 1463 as Supplemented may remain open and shall operate at such level as necessary to provide essential services and functions.
   ii. For clarity, Essential Healthcare Operations identified within Executive Order 1463 as Supplemented shall be construed broadly to avoid impact or interruption of the delivery of essential healthcare, but does not include fitness and exercise gyms, dance studios, clubs, tattoo parlors, spas, salons, barber shops, and other similar personal care and grooming facilities.
   iii. Restaurants and Bars may remain open but are limited to drive-thru, curbside, and/or delivery service.

f. ***Prohibited Activities***
   i. Consistent with Executive Order No. 1463 as Supplemented, all public and private social and other non-essential gatherings in groups of more than 10 people in a single space at the same time where individuals are in close proximity (less than 6 ft.) to each other shall be cancelled or rescheduled.
   ii. All places of amusement and recreation, whether indoors or outdoors, including but not limited to amusement parks and rides, museums, playgrounds, children's party and play facilities, all parks including all beaches, lakes and reservoirs (but not including walking trails), movie theaters, bowling alleys, and social clubs shall be closed to the public.

g. ***Essential Activities***: Individuals may leave their residences only to perform the following Essential Activities:
   i. To engage in activities or perform tasks necessary to their health and safety, or the health and safety of their family or household members (including pets) or the health and safety of those persons who are unable to or should not leave their home.
   ii. To obtain necessary food, services or supplies for themselves and members of their household needed to maintain the safety, sanitation and essential operation of the home or residence, or to deliver those services or goods to those persons who are unable to or should not leave their home.
   iii. To engage in individual outdoor activity and recreation.
   iv. To perform work providing essential products and services at Essential Businesses or Operations (as defined in Executive Order No. 1463 as Supplemented) or to carry out activities permitted in this Executive Order, including Minimum Operations.

h. ***Essential Travel***: Individuals engaged in Essential Travel must adhere to both the CDC and the Mississippi State Department of Health recommendations and guidance to prevent the spread of COVID-19, including social distancing (6 ft. between individuals) and aggressive hygiene including frequent handwashing (minimum 20 seconds) and use of hand sanitizer. For purposes of this Executive Order, Essential Travel includes travel for the following purposes:

i. Travel for Essential Business or Operation, as defined in Executive Order No. 1463 as Supplemented.
ii. Travel for Essential Activities, as defined herein.
iii. Travel to care for elderly, minors, dependents, persons with disabilities, or other vulnerable persons including to obtain COVID-19 testing for such individuals.
iv. Travel to or from educational institutions including public and private K-12 schools, colleges and universities, and other educational institutions for purposes of receiving materials for distance learning, for receiving meals, and other education related purposes.
v. Travel to or from their place of residence.
vi. Travel required by law enforcement or court order, including to transport children pursuant to a custody agreement.

i. ***County and Local Municipal Authority***: Nothing in this Executive Order shall limit or alter the authority of any local or county authority from adopting orders, rules, regulations, resolutions, and actions that are more strict than established herein, provided that they do not impose restrictions that prevent any Essential Business or Operation as identified in Executive Order No. 1463 as Supplemented from operating at such level necessary to provide essential services and functions during this COVID-19 State of Emergency.

II. Delegate Authority to Issue and Enforce Quarantine and Isolation Orders:
a. Pursuant to Miss. Code Ann. § 33-15-11(b)(5) and § 33-15-31, the State Health Officer in consultation with the Governor is authorized and empowered to issue such orders as necessary to carry out, implement, and enforce any quarantine or isolation orders to contain and restrict transmission of COVID-19.
b. That this authority is in addition to, and consistent with, the Mississippi State Department of Health's authority to issue, maintain and enforce isolation and quarantine orders pursuant to Miss. Code Ann. § 41-23-5 and other controlling law.
c. Nothing in this Executive Order limits or alters the authority under Miss. Code Ann. § 21-19-3 for a governing authority of a municipality to enact and enforce more restrictive measures to contain and restrict transmission of COVID-19.

III. Enforcement of Shelter in Place:
a. This Executive Order may be enforced by all State, County and Local law enforcement, as well as by other governmental entities (such as State and local departments of health) to the fullest extent under Mississippi law including, *inter alia*, Miss. Code. Ann. §§ 33-15-11(b)(5) and 33-15-11(b)(6).
b. Violations of this Executive Order are subject to the provisions of Miss. Code Ann. § 33-15-43.

IV. That all departments, commissions, agencies, institutions, and boards of the State of Mississippi, political subdivisions thereof, counties, municipalities and school districts are authorized and directed to cooperate in actions and measures taken in response to COVID-19 during the State of Emergency.

IN TESTIMONY WHEREOF, I have hereunto set my hand and caused the Great Seal of the State of Mississippi to be affixed.

DONE in the City of Jackson, on the 1st day of April, in the year of our Lord, two thousand and twenty, and of the Independence of the United States of America, the two hundred and forty-fourth.

TATE REEVES
GOVERNOR

BY THE GOVERNOR

MICHAEL WATSON
SECRETARY OF STATE

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A Mississippi Nonprofit Corporation

The Honorable Tate Reeves
Governor of Mississippi
Post Office Box 139
Jackson, MS 39205

April 2, 2020

Re: Recommended Policy Responses to COVID-19 Pandemic

Dear Governor Reeves,

I write as President and CEO of the Mississippi Center for Justice in response to the COVID-19 pandemic. With offices in Jackson, Biloxi, and Indianola, the Center combats discrimination and poverty statewide through legal representation, policy advocacy, and community education. The Center partners with national, regional, and community organizations and volunteers to develop and implement campaigns that are creating better futures for low-wealth Mississippians and communities of color in the areas of educational opportunity; consumer protection; and access to health care, public benefits, and housing.

Based on mathematical modeling, the U.S. Centers for Disease Control and Prevention estimates that between 160 million and 215 million people in the U.S. could be infected over the course of the pandemic. As many as 200,000 to 1.7 million people could die. As of yesterday, the Mississippi State Department of Health has reported a total of 1,177 cases and 26 deaths attributed to COVID-19. Given the limited availability of tests, actual viral prevalence is likely much higher. Unfortunately, due to preexisting health inequities, weak health care infrastructure, and high rates of uninsured individuals, Mississippians are extremely vulnerable to COVID-19-related deaths. Mississippians face the highest rates of heart disease and adult obesity in the nation—co-morbidities that increase the risk of COVID-19-related mortality. While COVID-19 will have long-lasting impacts on our state's collective health, safety, stability, and economy, it will not affect all Mississippians equally. Already, the crisis is amplifying Mississippi's staggering economic and racial inequities. Many of our most vulnerable residents and communities—many of whom already lack health insurance as well as adequate funds for groceries, rent, and other basic needs—do not have enough money in the bank to prepare for quarantine and widespread economic disruption.

When Congress enacted the Families First Coronavirus Response Act of 2020 (FFA) and CARES Act of 2020, it was clear that it expected states to use it. Accordingly, we call on you and your administration to adopt the following policy recommendations, which match the urgency of COVID-19's threat to our state:

Exhibit 2

Public Health

- Public health emergencies have a record of disproportionately burdening communities of color and women. These health inequities can only be eliminated if high-quality data is available to track emerging problems and inform equitable solutions. We commend the Mississippi State Department of Health Services for collecting and publishing COVID-19 cases and mortality disaggregated by gender. We urge the agency to include data on COVID-19 testing as well. This data should not only be disaggregated by gender, but race and ethnicity as well. Transparency is needed to inform action.
- We are gravely concerned with how Asian Americans and people of Asian descent are being discriminated against as a result of the COVID-19 pandemic. We call on you to denounce racist and xenophobic attacks on Asian American communities and people from Asian countries residing in Mississippi.
- Thank you for issuing a statewide shelter-in-place order. This measure was necessary to suppress the spread of COVID-19; prevent Mississippi's health care system from being overwhelmed; allow time for the production of critical test kits, personal protective equipment, and ventilators; and avoid needless deaths.

Public Benefits

Medicaid & CHIP

- The servers at your favorite restaurant, the person who cuts your hair, and grocery and pharmacy workers are among our friends and neighbors who will be hit hardest by COVID-19. They are the least likely to have health insurance and are already losing their jobs as the economic crisis worsens. Perhaps the most important thing that our state can do right now to protect families from COVID-19 is to expand the Medicaid health insurance program. Expansion will ensure that more people have health coverage and can receive care if they become sick without worrying about large medical bills. It will also help Mississippi's workforce stay healthy and be ready to work again after the crisis is over. Most states have already taken this step. Accordingly, we call on you and our state legislature to keep Mississippi healthier and financially stronger by expanding Medicaid.
- We urge the Division of Medicaid to maximize health insurance coverage for COVID-19 testing, evaluation, and treatment (including vaccines, specialized equipment, and therapies) to the greatest extent possible under the FFA, other emerging COVID-19 legislation, and preexisting federal law. The agency should ensure Emergency Medicaid coverage without cost-sharing of COVID-19 testing, evaluation, and treatment for any individual with symptoms reasonably consistent with the virus, including immigrants. As well, it should cover without cost-sharing COVID-19 testing, evaluation, and treatment for Medicaid and CHIP beneficiaries.

- The Division of Medicaid should meet the four Maintenance of Effort requirements necessary to qualify for the FFA's temporary increase to the Federal Medical Assistance Percentage. To qualify, Mississippi cannot:
    - Implement any eligibility standards, methodologies, or procedures that are more restrictive than those in effect in the state on January 1, 2020;

  - Impose new or increased premiums on any beneficiary that exceed the amount of the new premium in effect on January 1, 2020;
  - Disenroll any individual who is enrolled as of March 18, 2020 (the date of enactment) or who newly enrolls during the public health emergency for any reason unless the person is no longer a Mississippi resident or requests voluntary termination; or
  - Fail to cover without cost-sharing COVID-19 testing and treatment services, including vaccines, specialized equipment, and therapies.
- The Division of Medicaid should eliminate administrative barriers and burden to the maximum extent authorized under federal law. For example, it should avoid losses of coverage by suspending Medicaid eligibility redeterminations and periodic wage matches during the pandemic. The agency should not cut off eligibility due to a redetermination delay, because a delay is not a finding of ineligibility. It should pursue waiver authority for telephonic Medicaid and CHIP applications, signatures, and interviews to the extent that they are required. The Division of Medicaid should utilize 12-month continuous eligibility for children and request the same policy for adults through a 1135 waiver. It should also leverage existing authority and (to the extent necessary) a State Plan amendment to suspend prior authorization requirements and utilization management. It should also reduce limits (e.g., quantity limits) on prescriptions and refills and enable beneficiaries to receive 3+ months of prescriptions.
- In addition to the recommendations above, we urge the Division of Medicaid to maximize access to care by advancing telehealth and opening managed care networks. The agency should allow telehealth and virtual/telephonic communications for Mississippians in all Medicaid and CHIP eligibility categories, including those receiving State Plan and Family Planning waiver benefits. The agency should also allow reimbursement for telephone visits at the same rate as telehealth video visits. The Division should open managed care networks to any providers willing to meet the applicable network rate.
- The FFA creates a new Medicaid optional eligibility group called "uninsured individuals." The Division of Medicaid can exercise this option to use Medicaid to pay for COVID-19 testing for qualifying individuals with 100 percent reimbursement. However, it does not provide coverage for COVID-19-related treatment of individuals covered under this eligibility category.

<u>SNAP</u>

- We commend the Department of Human Services (DHS) for already taking some key steps to strengthen SNAP's ability to fight hunger amid COVID-19. DHS can build on this foundation through the following policy responses.
- DHS and partner agencies should maximize SNAP benefits to the extent authorized under the FFA, other emerging COVID-19 related legislation, and preexisting federal law. We understand that DHS and the Mississippi Department of Education are working together to provide Pandemic EBT to families that would receive free or reduced-price meals at school under ordinary circumstances and encourage the agencies to implement this option as soon as possible. We also understand that the Department has received notice of approval for emergency SNAP allotments. It should work with the U.S. Food and Nutrition Service (FNS) to ensure the continuous availability of emergency SNAP allotments and Pandemic EBT for the duration of the pandemic.

It should also engage in extensive SNAP outreach to ensure that Mississippians are aware of any steps that they need to take to qualify for these emergency benefits.

- As physical county offices close and participants stay home out of concern for their health, households risk losing their benefits. We urge DHS to eliminate in-person requirements and offer services over the phone and internet. For example, the agency should allow telephonic applications and signatures and continue to enable telephonic interviews. Of note, the FFA temporarily suspended the 3-month time limit on benefits for adults under 50 without children in their home or a qualifying disability. In line with this policy change, the agency should continue to provide exemptions from mandatory Employment and Training during the pandemic.
- With unemployment on the rise, we urge DHS to seek a waiver authorized under the FFA to base SNAP eligibility on reasonably anticipated income rather than past income.
- At present, FNS is approving waivers to extend SNAP certification periods up to 60 days. FHS approved DHS' waiver for this duration. However, given the ongoing nature of the pandemic, we would like to see certification periods extended to 24 months. We urge DHS to continue to apply for FNS waivers to extend the certification period to the maximum amount possible.

Housing and Homelessness

- We commend you for issuing a statewide moratorium on evictions. We urge you to extend the moratorium include unconditional freezes on eviction filings as well. The moratorium should last for 120 days to be consistent with the CARES Act or until federal and state public health agencies' social distancing guidelines are no longer in effect, whichever comes later. The state should make available financial resources to support rental payments and/or rental debt forgiveness using any available resources including those made available in the federal CARES Act which specifically grants money for this purpose. These resources are needed to prevent future harm to tenants with low incomes and ensure that property owners can make mortgage payments once moratoriums are lifted. These actions will also help ensure that Mississippi's parents and guardians of school-age children, who are now stepping in as homeschool teachers, have housing security and are thus able to assist their children with schoolwork in a stable and safe environment.
- We urge you to impose an immediate and long-term moratorium on home foreclosures as Governor Barbour did following Hurricane Katrina. The moratorium should include unconditional freezes on foreclosures and foreclosure filings for 120 days or until federal and state public health agencies' social distancing guidelines are no longer in effect. Repayment can wait until this public health crisis abates and must be affordable. The moratorium should cover manufactured homes, whether titled as real or personal property, and should prohibit evictions in manufactured home communities. Everyone needs to have a place to shelter during this crisis. This benefits not only the individual seeking the protection from foreclosure or eviction, but also those citizens who they would interact with if they are without a place to shelter safely. Without this moratorium in place, Mississippi would be contributing to the spread of the coronavirus, thus contributing to the number of those infected and the number of those who die as a result of being infected.
- We urge your administration to extend and enforce existing protections against utility shut-off through a statewide moratorium until the pandemic is controlled in Mississippi and nationwide or, at a minimum, while social distancing recommendations are in effect.

- We also call on your administration to protect people experiencing homelessness who lack shelter options that allow adequate social distancing by providing emergency housing. If emergency housing options are inadequate, leverage public-private partnerships to utilize unused hotel rooms.

Consumer Protection

- In light of COVID-19, we call on your administration to issue an emergency rule for debt collection. Mississippi needs to adopt and enforce an emergency rule to keep creditors from engaging in methods of debt collection that can require people to leave their homes or have in-person contact, including filing new lawsuits against Mississippi consumers, visiting their homes or places of work, or repossessing their cars, among other protections. This emergency rule should contain protections that apply to all creditors and prohibits them from deceptive practices in pursuing the payment of a debt during the COVID-19 emergency, including:
    - filing any new collection lawsuit;
    - garnishing wages, earnings, properties or funds;
    - repossessing vehicles;
    - visiting or threatening to visit the household of a debtor;
    - visiting or threatening to visit the place of employment of a debtor;
    - confronting or communicating in person with a debtor regarding the collection of a debt in any public place.

  This regulation should also prohibit debt collection agencies and debt buyers from making unsolicited debt collection telephone calls to Mississippi consumers for the next 90 days.

Language Access

- We urge your administration to ensure that all provisions for remote court and administrative hearings include interpretation services for limited-English speakers and work with the courts as necessary to ensure this.
- As well, we call on your administration to ensure that all state-issued public health, public benefits, and other COVID-19-related notices/announcements include translations/interpretations into Spanish and Vietnamese. We also urge your administration to ensure that the University of Mississippi Medical Center and all community health centers statewide (including Federally Qualified Health Centers and look-alike Community Health Centers) have adequate materials and staffing to treat non-English-speaking patients. Outreach must include partnerships with local community-based organizations and ethnic media which have the expertise to communicate with Mississippians of various backgrounds.

Law Enforcement

- We urge you to prohibit state and local law enforcement from detaining people for low-level traffic offenses, such as driving without a license.

Education

- Mississippi has made significant gains toward providing a high-quality public education to all of its students in recent years. Therefore, it is imperative that your administration, in conjunction

with other state agencies, takes steps during the COVID-19 pandemic to ensure that the progress made in public education is not erased.

- We urge your administration to create an updated plan for school closures and communicate that plan to school districts and the public as soon as possible. As of April 1, 2020, schools are closed through April 17, 2020. Because there has not been an updated announcement regarding school closures, schools are in the unenviable position of having to both adapt to distance learning and prepare to resume normal instruction in a few short weeks and parents/guardians face uncertainty regarding how long distance learning will be implemented and how long they will need to secure childcare. If the Reeves administration decides to close the schools for the rest of the academic year—which is appropriate given that the virus continues to spread and seven other states, including Alabama, one of our neighboring states, have already decided to close for the remainder of the school year—that decision needs to be made as soon as possible. An updated plan regarding school closures is necessary so that school districts, families, childcare centers, etc. can make plans for the remainder of the school year.
- We call on your administration to increase broadband internet access so all students, particularly those in rural areas, have access to e-learning. Disparities in access to broadband internet and technology affect school districts' abilities to implement e-learning. Some school districts have transitioned to a full e-learning model because they have the resources to provide students with computers, Wi-Fi hotspots, and other resources necessary to successfully utilize e-learning platforms while other districts are stuck with sending paper packets home because they do not have computers, hotspots, and the like to lend out to families. We encourage your administration—including the Mississippi Department of Education, the Public Service Commission, and other related agencies—to mitigate the effects of disparities in broadband internet access on public school students as much as possible.
- We urge the Mississippi Department of Education to issue guidance for school districts regarding how to ensure that students with disabilities are receiving services to guarantee that their right to a free appropriate public education is being met during this time of extended school closure. Nationally, there has been confusion regarding how districts are to provide special education services to students who need them while schools are closed. Unfortunately, school districts across the country that have been reluctant to provide modified special education services out of fear that they will be legally liable for failure to comply with individualized education programs, because it is impracticable or impossible to provide some of those services when school is not physically in session. The Reeves administration needs to work with the Mississippi Department of Education to ensure that Mississippi school districts are not neglecting their students with disabilities during this time; guidance that helps school districts understand how to provide special education services to the best of their abilities without fear of liability if they are unable to provide the exact services stipulated in the individualized education program is needed.

Conclusion

The choices you make in the days, weeks, and months ahead have the potential to minimize disease spread, deaths, and suffering among Mississippians. With thousands of lives on the line—especially including those whose health is already compromised, people who do not have health care, and people

who are experiencing poverty—we urge the Reeves administration to adopt the policy recommendations above.

If you have any questions or concerns regarding these recommendations, please contact Beth Orlansky, Advocacy Director, at borlansky@mscenterforjustice.org or (601)214-4735. Thank you for considering these recommendations and in advance for taking the steps necessary to prevent needless deaths from this urgent public health crisis.

Sincerely,

Vangela M. Wade

Vangela M. Wade
President/CEO
Mississippi Center for Justice

IN THE SUPREME COURT OF TEXAS

Misc. Docket No. 20-9045

FOURTH EMERGENCY ORDER REGARDING THE COVID-19 STATE OF DISASTER

ORDERED that:

1. Governor Abbott has declared a state of disaster in all 254 counties in the State of Texas in response to the imminent threat of the COVID-19 pandemic. This order is issued pursuant to Section 22.0035(b) of the Texas Government Code.

2. This Order supplements and does not replace or amend the First, Second, or Third Emergency Orders Regarding the COVID-19 State of Disaster.

3. In any action for eviction to recover possession of residential property under Chapter 24 of the Texas Property Code and Rule 510 of the Texas Rules of Civil Procedure:

   a. No trial, hearing, or other proceeding may be conducted, and all deadlines are tolled, until after April 19, 2020;

   b. A writ of possession may issue, but the posting of the written warning required by § 24.0061(d)(1) of the Property Code and the execution of the writ of possession may not occur until after April 26, 2020, and the deadlines in Rules 510.8(d)(1)-(d)(2) are tolled while this Order remains in effect; and

   c. New filings may be accepted, but the time period in Rule 510.4(a)(10) is suspended, and issuance and service of citation may not occur until after April 19, 2020.

4. A case covered by Paragraph 3 may nevertheless proceed if, but only if:

   a. The plaintiff files a "Sworn Complaint for Forcible Detainer for Threat to Person or For Cause";

Exhibit 3

b. The court determines that the facts and grounds for eviction stated in the Complaint, under oath with personal knowledge, taken as true, show that the actions of the tenant, or the tenant's household members or guests, pose an imminent threat of (i) physical harm to the plaintiff, the plaintiff's employees, or other tenants, or (ii) criminal activity; and

c. The court signs an order stating procedures for the case to proceed.

5. This Order is effective immediately and expires April 19, 2020, unless extended by the Chief Justice of the Supreme Court.

6. The Clerk of the Supreme Court is directed to:

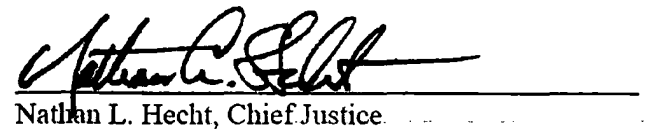
a. post a copy of this Order on www.txcourts.gov;

b. file a copy of this Order with the Secretary of State; and

c. send a copy of this Order to the Governor, the Attorney General, and each member of the Legislature.

7. The State Bar of Texas is directed to take all reasonable steps to notify members of the Texas bar of this Order.

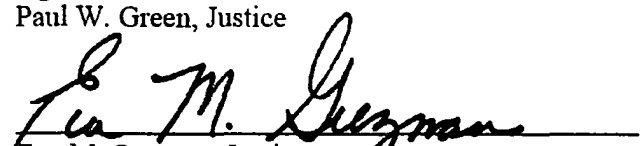
Dated: March 19, 2020



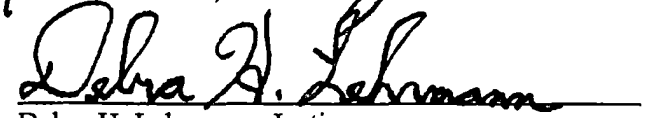
Nathan L. Hecht, Chief Justice



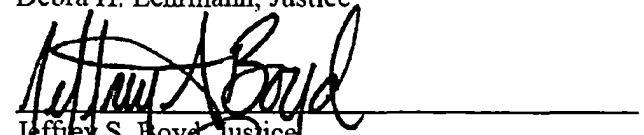
Paul W. Green, Justice



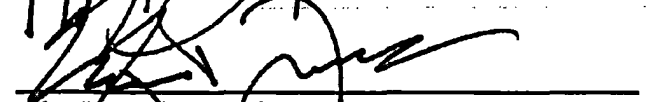
Eva M. Guzman, Justice



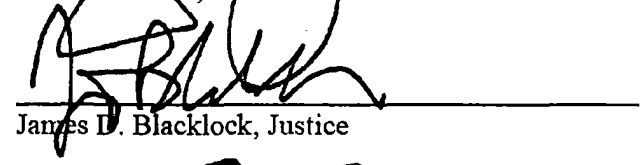
Debra H. Lehrmann, Justice



Jeffrey S. Boyd, Justice



John P. Devine, Justice



James D. Blacklock, Justice



J. Brett Busby, Justice



Jane N. Bland, Justice

IN THE SUPREME COURT OF TEXAS

Misc. Docket No. 20-9052

NINTH EMERGENCY ORDER REGARDING THE COVID-19 STATE OF DISASTER

ORDERED that:

1. Governor Abbott has declared a state of disaster in all 254 counties in the State of Texas in response to the imminent threat of the COVID-19 pandemic. This order is issued pursuant to Section 22.0035(b) of the Texas Government Code.

2. This Order supersedes the Fourth Emergency Order Regarding the COVID-19 State of Disaster, Misc. Dkt. No. 20-9045, issued March 19, 2020. This Order supplements and does not replace or amend other prior Emergency Orders Regarding the COVID-19 State of Disaster.

3. In any action for eviction to recover possession of residential property under Chapter 24 of the Texas Property Code and Rule 510 of the Texas Rules of Civil Procedure:

   a. No trial, hearing, or other proceeding may be conducted, and all deadlines are tolled, until after April 30, 2020;

   b. A writ of possession may issue, but the posting of the written warning required by § 24.0061(d)(1) of the Property Code and the execution of the writ of possession may not occur until after May 7, 2020, and the deadlines in Rules 510.8(d)(1)-(d)(2) are tolled while this Order remains in effect; and

   c. New filings may be accepted, but the time period in Rule 510.4(a)(10) is suspended, and issuance and service of citation may not occur until after April 30, 2020.

4. A case covered by Paragraph 3 may nevertheless proceed if, but only if:

a. The plaintiff files a "Sworn Complaint for Forcible Detainer for Threat to Person or For Cause";

b. The court determines that the facts and grounds for eviction stated in the Complaint, under oath with personal knowledge, taken as true, show that the actions of the tenant, or the tenant's household members or guests, pose an imminent threat of (i) physical harm to the plaintiff, the plaintiff's employees, or other tenants, or (ii) criminal activity; and

c. The court signs an order stating procedures for the case to proceed.

5. This Order is effective immediately and expires April 30, 2020, unless extended by the Chief Justice of the Supreme Court.

6. The Clerk of the Supreme Court is directed to:

a. post a copy of this Order on www.txcourts.gov;

b. file a copy of this Order with the Secretary of State; and

c. send a copy of this Order to the Governor, the Attorney General, and each member of the Legislature.

7. The State Bar of Texas is directed to take all reasonable steps to notify members of the Texas bar of this Order.

Dated: April 6, 2020

Nathan L. Hecht
Chief Justice

Proposed Temporary Adoption to Uniform Justice Court Rules of Procedure for Justice Court

Rule 1.26. Residential Eviction Moratorium

No hearings shall be held and no judgments shall be entered upon causes of eviction against residential tenants through July 27, 2020 or later date to be consistent with any extension of the CARES Act's eviction moratorium. Neither shall late fees or penalties for nonpayment of rent incurred through July 27, 2020 or later date to be consistent with any extension of the CARES Act's eviction moratorium, be imposed in future judgments of eviction upon residential tenants.

Exhibit - 5

FILED

APR 24 2020

OFFICE OF THE CLERK
SUPREME COURT
COURT OF APPEALS

Landrum, Courtney E.

From: William Bedwell <wbedwell@mscenterforjustice.org>
Sent: Friday, April 24, 2020 1:06 PM
To: sctclerk@mssc.state.ms.us
Subject: Emergency Motion for Emergency Order related to COVID-19 to be filed, by Mississippi Center for Justice
Attachments: Proposed Temporary Rule re Motion for Emergency Administrative Order.pdf; Emergency Motion for Emergency Order Related to COVID-19.pdf; Proposed Temporary Rule re Motion for Emergency Administrative Order.pdf

Please find attached to be filed an *Emergency Motion for Emergency Order related to COVID-19* and attached is the *Proposed Temporary Rule Change* requested in said *Motion*.

I can be reached directly at 601-550-8629 (cell) or 228-273-1596 (office) if there are any questions regarding this filing. I will wait 30 minutes as instructed to receive verification of receipt of the Motion by email before reaching back out to you all.

If you would, please provide me with a stamped copy once the *Motion* has been filed. Thank you very much.

Yours truly,
Will

William Bedwell
Staff Attorney

Mississippi Center for Justice
963 Division Street
Biloxi, MS 39530

Phone: 228-435-7284
Fax: 228-435-7285
www.mscenterforjustice.org
wbedwell@mscenterforjustice.org

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